

24SMCV03181 24SMCV03181

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Case Number: 24SMCV03181 Hearing Date: July 9, 2026 Dept: 205

Superior

Court of California

County

of Los Angeles

Beverly Hills Courthouse | Department 205

PASQUALE FALCONE,

Plaintiff,

v.

CENTURY CITY MALL, LLC, et al.,

Defendants.

Case No.:

24SMCV03181

Hearing Date: 07/09/26

Trial Date:

08/02/27

[TENTATIVE] RULING RE:

MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF'S FORM INTERROGATORIES,
SET ONE, AND REQUESTS FOR PRODUCTION, SET ONE; IMPOSITION OF SANCTIONS

Background

On July 1,
2024, Plaintiff Pasquale Falcone ("Plaintiff") filed a complaint against
Defendants Century City Mall, LLC, Westfield, LLC, Clune Construction, PSI3G,
Inc., dba PSI Partition Specialties, Tile Tech, Inc., Kronos USA, and Does 1 to
100, alleging four causes of action: (1) premises liability; (2) product
liability; (3) res ipsa loquitar; and (4) negligence. This action arises from an
alleged injury suffered by Plaintiff while working as a server at Terra
Restaurant in Eatly at the Westfield Century City Mall located at 10250 Santa
Monica Blvd, Los Angeles, CA 90067 due to a raised decorative floor tile.

On June 5,
2025, the Court found that Plaintiff had met their Informal Discovery
Conference requirement and may file their discovery motions. Defendants Century
City Mall, LLC & Westfield, LLC (collectively, "Defendants") did not appear
for the hearing.

On January
22, 2026, the Court found that Plaintiff had met their Informal Discovery
Conference obligations and may file their motions to compel. Defendants did not
appear for the hearing.

On March
20, 2026, Plaintiff filed motions to compel Defendants' further responses to
the Requests for Production No. 20 & Form Interrogatory No. 4.1.

On April
16, 2026, the Court denied the motions without prejudice for failing to file a
joint statement.

On June 11,
2026, Plaintiff filed the operative four motions to compel further responses to
the Request for Production No. 20 & Form Interrogatory No. 4.1.

On June 15,
2026, Plaintiff filed Separate Statements.[1]

On June 25,
2026, Defendants filed oppositions to all four motions.

On July 1,
2026, Plaintiff filed replies.

Motion to Compel Further Discovery Requests

I. Requests for Production and Interrogatories

The requesting party may move for
an order compelling further responses to request for production of documents if
any of the following apply: (1) a statement of compliance with the demand is
incomplete; (2) a representation of inability to comply is inadequate,
incomplete, or evasive; or (3) an objection in the response is without merit or
too general. (Code Civ. Proc., § 2031.310, subd. (a).) *~~~~*

The requesting party may move for
an order compelling further responses to interrogatories if any of the
following apply: (1) an answer to a particular interrogatory is evasive or
incomplete; (2) an exercise of the option to produce documents under section
2030.230 is unwarranted or the required specification of those documents is
inadequate; or (3) an objection to an interrogatory is without merit or too
general. (Code Civ. Proc., § 2030.300, subd. (a).)

The motion must be filed within 45
days from responses, supplemental responses, or a specific later date agreed to
in writing (Code Civ. Proc., §§ 2031.310, subd. (c), 2030.300, subd. (c).)
Failure to make motion within the specified period constitutes waiver
of right to compel a further response. (Sexton v. Superior Court (1997)
58 Cal.App.4th 1403, 1410.) The time period is mandatory and
jurisdictional in the sense that it renders the court without
authority to rule on motions to compel other than to deny them. (Id.)

The motion shall be accompanied by
a meet and confer declaration under Code of Civil Procedure section 2016.040.
(Code Civ. Proc., §§ 2031.310, subd. (b)(2), 2030.300, subd. (b)(1).) The

purpose of the meet and confer requirement is to encourage the parties to make serious effort to work out differences informally and avoid a need for a formal order. (Stewart v. Colonial Western Agency, Inc. (2001) 87 Cal.App.4th 1006, 1016.)

Under Rule of Court 3.1345, the movant must submit a separate statement along with the motion to compel further responses. Otherwise, the movant may submit a concise outline of the discovery request and its response in dispute. (Code Civ. Proc., §§ 2031.310, subd. (b)(1), 2030.300(b)(2).)

Analysis

On September 15, 2024, Plaintiff served Form Interrogatories and Requests for Production of Documents, Set One, to Defendants. (Mot., at pg. 4; Giubilei Decl., ¶ 3, Ex. A.) Despite multiple extensions, Defendants failed to serve verified responses to the discovery requests. (Id., Giubilei Decl., ¶ 5, Ex. A.) Thus, Plaintiff requested an Informal Discovery Conference that was held on June 5, 2025, during which the Court found that Plaintiff had met their Informal Discovery Conference requirement and may file their discovery motions. Defendants did not appear for the hearing. (Id., Giubilei Decl., ¶ 6.)

Defendants served responses on June 9, 2025, but Plaintiff found them to be deficient. (Id., Giubilei Decl., ¶ 7, Ex. B.) Counsels engaged in multiple meet and confer conferences between the months of June and July 2025 regarding the discovery motions and responses. (Mot., at pg. 5, Giubilei Decl., ¶¶ 9-10, 15.) On August 1, 2025, Defendants served further responses to FROGs No. 4.1 identifying an excess insurance policy, but Plaintiff found the responses to be deficient because the actual policy or insurance coverage correspondence was not provided. (Id., Giubilei Decl., ¶ 11.) On August 27, 2025, Defendants served second amended responses to the RPDs, but Plaintiff found the responses to be deficient because no excess insurance policy, declaration, or coverage correspondence were produced. (Mot., at pgs. 5-6, Giubilei Decl., ¶¶ 7-11.)

On January 22, 2026, a second Informal Discovery Conference was held and the Court found that Plaintiff had met their Informal Discovery Conference obligations and may file their motions to compel. Defendants did not appear for the hearing.

(Mot., at pg. 6, Giubilei Decl., ¶¶ 16-18.) On April 29, 2026, Defendants served a second amended response to the FROGs. (Christovich Decl., Exh. 7.)

I.

Meet and Confer

As noted above,

Plaintiff's counsel has met and conferred with opposing counsel multiple times throughout the more than one year period since the discovery requests were first served upon Defendants. Counsel also states that she made further meet and confer efforts before filing the operative motions, but the parties were unable to come to an agreement as to the Everest Indemnity excess policy or any insurance coverage correspondence. (Giubilei Decl., ¶ 22.) Accordingly, the Court finds that Plaintiff satisfied his meet and confer requirement and turns to the motions' merits.

II.

FROGs No. 4.1

Plaintiff moves to
compel further responses to Form Interrogatory No. 4.1, without objections.

FROG No. 4.1 states:

"At the time of the
INCIDENT, was there in effect any policy of insurance through which you were or might be insured in any manner (for example, primary, pro-rata, or excess liability coverage or medical expense coverage) for the damages, claims, or actions that have arisen out of the INCIDENT? If so, for each policy state:

(a)
the
kind of coverage;

(b)
the
name and ADDRESS of the insurance company;

(c)
the

name, ADDRESS, and telephone number of each named insured;

(d)

the

policy number;

(e)

the

limits of coverage for each type of coverage contained in the policy;

(f)

whether

any reservation of rights or controversy or coverage dispute exists between you and the insurance company; and

(g)

the

name, ADDRESS, and telephone number of the custodian of the policy."

In Further Response to

Interrogatory No. 4.1, Defendants state:

"Yes. (a) General liability; (b) XL Insurance America, Inc.; 505

Eagleview Blvd., Suite 100, Exton, PA 19341; (c) URW WEA, LLC and all

additional related Westfield companies; (d) US0009753LI22A (e) \$1,000,000.

Responding party maintains a \$250,000 self-insured retention. (f) None. (g)

Greenwich Insurance Company; 1201 North Market Street, Suite 501, Wilmington,

Delaware, 19801. Responding party also has additional excess insurance which

will be disclosed if necessary.

Yes. (a) General Liability (b) Everest Indemnity (c) Century City

Mall; Westfield (d) CC3GL00012-211 (e) \$1,000,000 per occurrence (f) No (g) Everest Indemnity;

Individual with possession of the original policy is unknown to responding

party."

(Separate Statement.)

In Defendants' Second

Amended Responses, served on April 29, 2026, Defendants state:

"Yes. (a) General liability; (b) XL Insurance America, Inc.; 505 Eagleview Blvd., Suite 100, Exton, PA 19341; (c) URW WEA, LLC and all additional related Westfield companies; (d) US0009753LI22A (e) \$1,000,000 each occurrence. (f) None. (g) Greenwich Insurance Company; 1201 North Market Street, Suite 501, Wilmington, Delaware, 19801.

Yes. (a) Umbrella Policy; (b) XL Insurance America, Inc.; 505 Eagleview Blvd., Suite 100, Exton, PA 19341; (c) URW WEA, LLC and all additional related Westfield companies; (d) US0009753LI22A (e) \$25,000,000 each occurrence. (f) None. (g) Greenwich Insurance Company; 1201 North Market Street, Suite 501, Wilmington, Delaware, 19801.

Yes. (a) General liability; (b) XL Insurance America, Inc.; 505 Eagleview Blvd., Suite 100, Exton, PA 19341; (c) URW WEA, LLC and all additional related Westfield companies; (d) US0009754LI22A (e) \$2,000,000, general aggregate limit. (f) None. (g) XL Insurance America, Inc.; 505 Eagleview Blvd., Suite 100, Exton, PA 19341.

Yes. (a) Commercial General Liability; (b) Everest Indemnity Insurance Co; (c) Eataly Century City, LLC, 10250 Santa Monica Blvd, Ste 2705 Los Angeles; (d) CC3GL00012-211 (e) \$1,000,000 per occurrence (f) No (g) Everest Indemnity; Individual with possession of the original policy is unknown to Responding Party. Responding Party is only a certificate holder.

Yes. (a) Commercial General Liability; (b) Everest Indemnity Insurance Co; (c) Eataly Century City, LLC, 10250 Santa Monica Blvd, Ste 2705 Los Angeles; (d) 1000305733221; (e) \$1,000,000 per occurrence; (f) No (g) Everest Indemnity; Individual with possession of the original policy is unknown to Responding Party. Responding Party is only a certificate holder."

(Christovich Decl., Exh. 7.)

Plaintiff's motions focus on the deficiency of the RPDs rather than Defendants' responses to the FROGs. Plaintiff argues that an order compelling responses to discovery is appropriate, Defendants must produce all insurance documents in their possession, custody, or control, and Defendants are required to produce all applicable insurance information. (Mot., at pgs. 8-9.) Plaintiff requests that the Court order Defendants to provide all required information for every applicable insurance policy, to identify any additional excess or umbrella

policies, to disclose all coverage correspondence, and to omit conditional language regarding future disclosure. (Separate Statement, at pg. 7.)

The Court finds that

Defendants' second amended responses served on April 29, 2026, addresses the issues and/or deficiencies Plaintiff identified in his Separate Statement. Defendants provided all required information for every applicable insurance policy, identified additional excess or umbrella policies that were not included in the further responses, and removed conditional language regarding future disclosures. The Court finds that FROGs No. 4.1 does not seek the disclosure of all coverage correspondence based on the plain language of the interrogatory.

Accordingly,

Plaintiff's motion to compel further responses to FROGs No. 4.1 is DENIED.

III.

RPDs No. 20

Plaintiff moves to

compel further responses to Form Interrogatory No. 4.1, without objections.

RPD No. 20 requests

Defendants produce "all DOCUMENTS that YOU identified, referenced, or referred to in YOUR response to Form Interrogatory No. 4.1." (Separate Statement, at pg. 1.)

In their further

responses to RPD No. 20, Defendants state:

"Pursuant to California

Civil Code of Procedure §2031.230, after a diligent search in a good faith attempt to provide as much documentation as possible in response to this demand and after reviewing all files and documentation within the possession, custody and control of this Defendant, its agents, representatives, and/or employees, Responding Party responds as follows: CCM 000120-CCM 000122; CCM 000255 – 000351."

(Christovich Decl., Exh. 1.)

In their second amended

response, Defendants state: "After a diligent search, Responding Party is not in possession of responsive documents to this request." (Christovich Decl., Exh. 2.)

Plaintiff's argument

here is identical to his argument in the motion to compel further responses to FROGs. Plaintiff requests that the Court order Defendants to produce the complete Everest Indemnity Insurance Company excess policy, all other excess, umbrella, or additional insurance policies that are potentially applicable here, and all coverage correspondence relating to this incident.

In opposition,

Defendants argue that the motion should be denied because the Everest policy is not within its possession or control because Eatly is the named insured. (Opp., at pg. 4.) Defendants also argue that they provided code-compliant responses stating that the requested documents are not within Defendants' possession after conducting a diligent search and reasonable inquiry. (Opp., at pgs. 4-5; Christovich Decl., Exhs. 1-2, & 8.) Lastly, Defendants contend that the produced Lease Agreement between Eatly and Defendants reflects that Eatly rather than Defendants retains possession of the sought documents. (Opp., at pgs. 5-6; Christovich Decl., Exh. 4.)

The Court finds

Defendants' arguments to be unpersuasive. The Certificate of Liability Insurance provided by Defendants states that:

"Century City Mall, LLC, Westfield America, Inc., Westfield America Limited Partnership, Westfield Property Management LLC, and any and all of their respective parents, partners, subsidiaries and affiliates, assigns, employees, agents, officers and representatives, together with any mortgagee from time to time of the Landlord's interest, are named as additional insured, as their interests may appear as required by written contract."

(Christovich Decl., Exh. 5.) Although Defendants are additional insured rather than the named policy holders, and state they do not have the Everest policy, Defendants could have requested the policy from Eatly or from the insurance company as additional insureds. (Id., Exh. 8.) Eatly's possession or control of the document as the named insured does not absolve Defendants of their discovery responsibilities. Defendants provide no evidence

that they requested the sought information from either Eataly or Everest Indemnity. Defendants also fail to address Plaintiff's request for coverage correspondence relating to the incident in their oppositions.

Accordingly, the Court

GRANTS Plaintiff's motion to compel further responses to RPDs No. 20.

IV.

Sanctions

Plaintiff

requests a total of \$4,440 for all four discovery motions. Counsel requests a total of 12 hours for drafting all four motions (8 hours) and replies (4 hours), and \$240 in filing fees. (Giubilei

Decl., ¶ 23.) Counsel bills at a rate of \$350/hour.

(Id., ¶ 24.)

It is mandatory that the Court "impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.300, subd. (d).)

It is mandatory that the court "impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.310, subd. (h).)

The

Court does not find Defendants to have acted with substantial justification, and Defendants' oppositions do not speak to other circumstances that would make the imposition of sanctions unjust.

However,

the Court finds the hours billed for attorney's work in association with the four motions to be excessive. First, the Court denies the requests for sanctions as to the motions to compel further responses to FROGs No. 4.1, because the motions

were denied. Second, the Court finds 2 hours for drafting a simple discovery motion to be excessive and unreasonable and reduces the request by one hour.

Accordingly,
the Court grants sanctions in the reduced total amount of \$1520.00, at a rate of \$350/hour, or \$760.00 per Defendant.

Conclusion

Plaintiff's motions to compel further responses to the first set of form interrogatories is DENIED.

Plaintiff's motions to compel further responses to the first set of requests for production is GRANTED.

Plaintiff's request for sanctions is granted in the reduced total amount of \$1520.00, at a rate of \$350/hour, or \$760.00 per Defendant.

The Court further orders Defendants to provide complete and verified responses to Plaintiff's Requests for Production, Set One, without objections, and to pay sanctions of \$760.00 each, or a total of \$1520.00, to Plaintiff, within 20 days of today.

Dated: July 9, 2026

Edward B. Moreton, Jr.

Judge of the Superior Court

[1] The Court notes that Plaintiff filed Separate Statements on both June 11 and 15, 2026, and the Court defers to the later filed statements. The Court also notes that Plaintiff did not include Defendants' second amended responses in the separate statements even though the responses were served prior to the statements' filings.